

In the Supreme Court of Bangladesh
High Court Division
(Special original Jurisdiction)

Present:

Mr. Justice Md. Bazlur Rahman

And

Mr. Justice Syed Mohammed Tazrul Hossain

Writ Petition No. 11776 of 2019

Gautam Biswas and others

Versus

Bangladesh represented by the Secretary Ministry
of Land, Bangladesh Secretariat, Shahbag, Dhaka
and others

Mr. Sukumar Biswas with

Mr. Mohammad Najmul Huda and

Mr. Tapan Kumar Biswas, Advocates

..... For the petitioners

Mr. Md. Mohaddesh-UI-Islam, D.A.G. with

Mr. Monjur Elahi (Porag), A.A.G

.....For the respondent No. 3

Heard on: 07.11.2024 &

Judgment on: 28.11.2024

Syed Mohammed Tazrul Hossain, J:

The petitioners filed this application under Article 102 of the
Constitution of the People's Republic of Bangladesh and obtained
Rule in the following terms:

"Let a Rule Nisi be issued calling upon the respondents to show cause as to why inclusion of SA Plot No. 14 in SA Khatian No. 81 measuring 34 decimals of land in Mouza-Panchuria, J.L. No. 92 under Police Station-Gopalganj Sadar, District-Gopalganj in the "ka" schedule of vested property at serial No. 214/1 which has been published on 26.04.2012 in Bangladesh Gazette under Section 9(1) of the "অর্পিত সম্পত্তি প্রত্যর্পণ আইন, ২০০১ (সংশোধিত ২০১১)" (Annexure-E), should not be declared to be without lawful authority and is of no legal effect, and as to why the respondents should not be directed to release the SA Plot No. 14 from SA Khatian No. 81 measuring 34 decimals of land in Mouza-Panchuria, J.L. No. 92 under Police Station-Gopalganj Sadar, District-Gopalganj from the "Ka" schedule of vested property what they are required by law to do and/or pass such other or further order or orders be passed as to this Court may seem fit and proper."

At the time of issuance of the Rule, this Division directed the parties to maintain status quo in respect of position and possession of the land in question for a period of 6(six) months from date. Said order of status quo has been extended from time to time by the petitioner and currently said order is in force.

2. The background facts of the case as presented by the petitioners leading to issuance of the Rule in short are that the schedule land was originally owned by Sree Mahima Charan Kar, son of Gopal Charan Kar and S.A. Khatian No. 68 was published in his name. Later, his son Nitynanda Kar inherited the said property and sold it to Aditty Nath Biswas, predecessor of the petitioners, vide a registered sale deed, dated 17.01.1958. Thereafter, S.A. Khatian No. 81 containing two plots of land including the schedule property was published in the name of Aditty Nath Biswas and two others. Then

S.A. Khatian No. 83, containing only the schedule property was published in the sole name of Adittya Nath Biswas. Upon death of Adittya Nath Biswas, S.A. Khatian No. 83 was published in the name of all his four sons. Subsequently BRS Khatian No. 51 and 74 were published in the name of the petitioners. Since purchase of the schedule property, Adittya Nath Biswas and his heirs have been paying regular land tax and other government dues in their names till the year 2016. Thereafter, upon publication of the BRS records, when the petitioners went to pay land tax in 2019, land office refused to accept land tax from the petitioners on the plea that the said property has been listed as a vested property. In the meantime, limitation period for filing a regular suit before the Tribunal has passed and being compelled, the petitioners preferred this writ petition and obtained Rule.

3. Mr. Tapan Kumar Biswas, along with Mr. Mohammad Najmul Huda and Mr. Sukumar Biswas, learned Advocates appearing on behalf of the petitioners placed the writ petition and supplementary affidavit. He submits that the predecessor of the petitioners Sree Adittya Nath Biswas purchased the schedule property, from Sree Nittyanda Kar, son of Mahima Charan Kar, the original owner of the said land which was recorded in his name under R.S. Khatian No. 68. Purchase was done vide, registered sale deed No. 665, dated 17.01.1958. Thereafter, S.A. Khatian No. 81 was published in the name of Nittyanda Kar, Adittya Nath Biswas and Surendra Nath Basu.

Subsequently S.A. Khatian No. 83 was published in the sole name of Aditty Nath Biswas. Upon death of said Aditty Nath Biswas, S.A. Khatian No. 83 (Annexure-B-2) was published in the name of all his four sons (i) Nakul Chandra Biswas; (ii) Gopinath Biswas; (iii) Gopal Chandra Biswas; (iv) Mohadev Biswas. Thereafter, B.R.S. Khatian No. 51 and 74 (Annexure-C and C-1) were prepared and published in the name of the petitioners.

4. He then submits that since purchase of the schedule property in the year 1958, petitioners and their predecessors have been paying the land tax and other government dues in their own names. Lastly they paid the land tax in 2016 (Annexure-D-3) in their own names and after publication of the BRS khatian when the petitioners went to pay the land tax, concerned officer of the land office refused to accept land tax from them. Only then the petitioners came to know that their property has been included in the "Ka" list of the vested properties under serial No. 214/1.

5. Mr. Biswas submits that the petitioners have been possessing and enjoying the schedule land through inheritance from their predecessor who purchased the schedule land from the rightful owner of the same on 17.01.1958 and since then they have continuously mutated their names in the land records regarding the schedule property and paid land tax till 2016. But, the respondents have included the said land in the list of vested properties without any lawful reason. S.A. Khatian No. 83 was correctly prepared and

published in the name of the predecessors of the petitioners, subsequently B.R.S. records were also published in the name of the petitioners. Therefore, including the schedule property in the "Ka" list of the vested properties is arbitrary and illegal.

6. Then he submits that apart from the name of the predecessor of the petitioners, S.A Khatian No. 81 contained two other names, namely Nityananda Karr and Surendra Nath Basu. Said Khatian included two plots; plot No. 14 consisting 34 decimals and plot No. 156 consisting of 35 decimals of land. Khatian No. 81 included a comment being "vinno kali/ different ink" shown against the name of Aditty Nath Biswas. Subsequently, when S.A Khatian No. 83 was published in the sole name of Aditta nath Biswas, it contained only plot No. 14, consisting 34 decimals of land. Later on when said khatian was published in the names of four sons of Aditta Nath Biswas, it also contained only plot No. 14, consisting of 34 decimals of land.

7. Mr. Biswas then submits that since purchase of the schedule land from its original owner in the year 1958, the predecessors of the petitioners or the petitioners themselves never left the country, therefore, inclusion of the schedule property in the list of vested property is malafide and collusive and the same is without the backing of any law.

8. He further submits that the schedule property has been included in the "Ka" list of the vested properties lists at serial No. 214/1

(Annexure-E) in the gazette. But, the said list did not publish the names of the owners and the present plot number and khatian number, which is violation of the provision of Clause 9 of the, Arpita Sompatti Prottarpan Ain, 2001 and hence it is not sustainable under the law.

9. Then he submits that the schedule property has been rightly owned and enjoyed by the petitioners and the said right of the petitioners is protected under the provision of Article 42 of the Constitution. By including the petitioners' property in the "Ka" list of the vested properties without any lawful reason the respondents have acted illegally which is a violation of the fundamental rights of the petitioners as guaranteed under the Constitution, hence, rule in the instant matter should be made absolute and the respondents should be directed to release the property from the "Ka" list. In support of his submissions, Mr. Biswas submitted case references, reported in 32 DLR (AD) 29; 45 DLR (HCD) 571; 17 BLD (HCD) 249.

10. Mr. Md. Mohaddesh-UI- Islam learned Deputy Attorney General along with Mr. Monjur Elahi Porag, the learned Assistant Attorney General appearing for the respondent No. 3 contested the Rule by filing an affidavit in opposition.

11. Mr. Islam submits that the disputed land under S.A. Khatian No. 81 contains two plots of land being plot No. 14 and 156 and the said khatian was published in the name of Nittyanda Kar, son of Mahima Charan Kar, Aditya Nath Biswas, son of Gurucharan Biswas

and Surendra Nath Basu, son of Rajanikanta Basu. Nittymananda Kar left for India during the war between India and Pakistan in 1965 and never returned, hence said khatian has been enlisted in the "Ka" list of the vested properties under serial No. 214/1 and the gazette was published on 24.04.2012 under section 9 of the Arpita Sompatti Prottarpan Ain, 2001 as amended in 2010.

12. He submits that predecessor of the petitioners purchased the schedule property from Sree Nittymananda kar, but he left the country during the 1965 war between India and Pakistan and since then his whereabouts is not known, therefore the property owned by Nittymananda Kar has been rightly listed in the "Ka" schedule.

13. Mr. Islam then submits that the comment in "vinno kali/ different ink" has been shown in the S.A. Khatian No. 81 against the name of Aditya Nath Biswas, but this court is not in a position to take evidence as to whether "vinno kali/ different ink" was actually used in Khatian No. 81 or not. Hence, as this court does not have the jurisdiction to determine the factual aspect of this case, the Rule issued in this matter should be discharged.

14. Then he submits that the name of the predecessor of the petitioners was wrongly published in S.A. Khatian No. 83. S.A. Plot No. 14 consists of 34 decimals of land and said plot number is also included S.A Khatian No. 81. Since Nittymananda Kar has left the country during the 1965 war and S.A. Khatian No. - 81 being published in his name have rightly been included in the list of vested

properties, therefore instant Rule should be discharged. 81 being published in his name have rightly been included in the list of vested properties, therefore instant Rule should be discharged.

15. We have heard the learned advocates from both the sides, perused the writ petition, supplementary affidavit of the petitioner, affidavit in opposition filed by the respondent No. 3, carefully perused the documents annexed by the parties and considered the provisions of law.

16. It seems that the main reason for the petitioners to file this writ petition is a publication of gazette notification, dated 24.04.2012 which contains schedule property under "Ka" list. Since the publication of the gazette notification, the petitioners were not aware and by the time they came to learn that their property has been included in the said "Ka" list, statutory period of limitation to file a petition before the Tribunal has passed and the petitioners had to take recourse under the provision of Art. 102 of the Constitution and accordingly they have challenged the enlistment under the extraordinary jurisdiction of this court.

17. It appears from the record that the gazette notification, dated 24.04.2012 includes the schedule property in the "Ka" list at serial No. 214/1 under V.P. Case No. XII/5/1464/68-69 showing that the said property has been under the possession of the Government since 13.02.1969, but this publication does not include the name of the owner of S.A. Khatian No.81 containing S.A plot No. 14 and 156

measuring in total 59 decimals of land (34 decimals in plot No. 14 and 35 decimals in plot No. 156).

18. We have seen from the presented documents that since purchasing the land of plot No. 14, consisting 34 decimals by Aditty Nath Biswas, a separate Khatian, being No. 83 was prepared and published by including plot No. 14, consisting 34 decimals of land (whole land of the said plot). Since a new khatian has been published in the name of the new owner and as the respondents failed to raise any plausible allegation of illegality regarding publication of the same, Khatian No. 83 shall supersede the Khatian No. 81.

19. The predecessor of the petitioners purchased the land on 17.01.1958 long before the India-Pakistan war broke out and the publication of the Enemy Properties Act, 1965. The respondents also did not assert that the predecessor of the present petitioners since purchasing the property has left the country and thereby fell under the provisions of the said Act. On the contrary, the respondents in their affidavit in opposition asserted that Nittananda Kar has left Bangladesh during Indo-Pak war and he never came back. We find that even though Nittananda Kar left the country during the 1965 war, but he transferred the schedule property in 1958 vide a registered deed. As the property was transferred long before the war, the presence or absence of said Nittananda Kar from the country after the said war is immaterial for the purpose of the instant case.

20. The respondents submitted that the annexed documents produced by the petitioners were forged and false, but apart from making a general allegation, they failed to put forward any convincing argument or to produce anything in support of their allegation. On top, since this court is not a court of facts, is not in a position to consider the validity or genuineness of the documents produced by the petitioner, and if sought by the respondents such an allegation may be looked into by a competent court.

21. In the instant case, regarding the same property one department of the government accepting land tax from the petitioners and another department enlisting it as a vested property is not sustainable. In **Additional Deputy Commissioner (Revenue) Narayangonj Vs. A.K.M. Latiful Karim and others**, reported in **17 BLD (HCD) 249** it was held that the action of the local revenue officer in accepting the plaintiff and his successive predecessors in interest as tenants in respect of the suit property under the government is binding on the vested property department and the latter cannot claim the suit property as a vested property; and in **Abul Khair Miah being dead his heirs Abul Kashem and others Vs. Bangladesh and others** reported in **32 DLR (AD) 29** our Apex Court observed that it requires to be explained by the enemy property authority or the government how the property could be treated as enemy property. It was for the enemy property authority in the premises of the facts to establish that the predecessor of the vendors of the appellant or they in fact

migrated to India earlier, to the Enemy Property Law came into operation in 1965, so that the property left by them came within the mischief of the enemy property law.

22. In the instant case as the respondents failed to establish the reasons for enlisting the property of the petitioners in the "Ka" list of the vested properties, it cannot sustain. Especially when one department of the government accepted land tax from the petitioners for their land then another department cannot come forward and say that the petitioners do not possess the said property. In this regard we would like to refer an English case reported in (1949) 1 K.B.227. Short fact in that decision was that the appellant, a serving army officer wrote to the war office regarding a disability of him and received a reply accepting his disability as attributable to military service. Subsequently, Ministry of Pensions decided that the disability was not attributable to military service and thus did not accept the decision of the war office. Lord Denning held that "... if a government department in its dealing with a subject takes it upon itself to assume authority upon a matter with which he is concerned, he is entitled to rely upon it having the authority which it assumes. He does not know and cannot be expected to know the limits of its authority. The department itself is clearly bound, as it is but an agent to the Crown, it binds the Crown also, and as the Crown is bound, so are the other departments, for they also are but agents of the Crown..."

23. With regard to maintainability of the present petition, it appears that the petitioners submitted that the petitioners were agitating their case for the violation of their fundamental rights under Article 42 of the Constitution for enlisting the schedule property, which they rightfully own, under the "Ka" list of the vested properties and hence instant petition is absolutely maintainable.

24. Right to hold property is a fundamental right as guaranteed under Article 42 of the Constitution; treating the property lawfully owned by the petitioners as vested property under the Arpita Sampatti Prottarpon Ain, 2001 (As amended in 2011) is violative of the said provision of the Constitution and hence amenable to the jurisdiction of this court. It is seen from the record that the petitioners have been possessing and enjoying the suit property since it was purchased by their forefather, they never left the country and are citizens of this country and they have never been dispossessed from the schedule property and as such inclusion of their property in the "Ka" list of the vested properties in violation of the provisions of law is violative of their fundamental rights guaranteed under the Constitution.

25. In view of the above facts and circumstances of the case, we find that inclusion of the suit property in the list of vested properties as contained in gazette notification, dated 26.04.2012 (Annexure-E) is without lawful authority and is of no legal effect.

26. Respondents are directed hereby to exclude the schedule property from the "Ka" list published in the Bangladesh Gazette,

dated 26.04.2012 (Annexure-E) within 60(sixty) days from the date of receipt of this judgment.

In the result, the Rule is made absolute and there shall be no order as to costs.

Communicate the judgment at once.

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(Syed Mohammed Tazrul Hossain,J)

I agree

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(Md. Bazlur Rahman,J)

Nurul Amin/BO

